

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1439

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-917, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE MODEL SCHOOL FACILITY COUNCIL; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-917, Idaho Code, be, and the same is hereby amended to read as follows:

33-917. SCHOOL DISTRICT USE OF FUNDS -- SCHOOL MODERNIZATION FACILITIES FUND.

(1) (a) Moneys distributed to a school district shall be used for school facility construction, renovation, or maintenance needs or, in the case of school districts electing annualized distributions, funds shall be used subject to section 33-911, Idaho Code. Uses of funds shall include regular and routine facilities maintenance, including preventive maintenance, building repairs, and building security, and shall also include periodic major facilities projects that involve planning, design, construction, renovation, retrofitting, and replacing of buildings and building systems, components, and features, as well as site acquisition, site improvements, and new construction.

(b) Any funds distributed by the state to school districts for facilities must be used only for the purposes described in this subsection. Any funds intended for facilities but used for another purpose shall be returned to the state by the school district and deposited to the school modernization facilities fund. If the school district fails to return such funds, an amount equivalent to the misused funds shall be deducted from the state's next payment to the school district pursuant to this chapter or chapter 52, title 33, Idaho Code.

(2) All funds shall be used for school facilities directly related to the school district's core educational mission. No funds shall be used for facilities with a primary athletic purpose.

(3) Each school district shall annually report to the state department of education, in a manner prescribed by the state department of education, on the planned and actual expenditure of moneys it has received pursuant to this section.

(4) A model school facility council shall be created by July 1, 2024, to research, adopt, and recommend a model school facility plan that schools shall abide by when using school modernization facilities fund moneys pursuant to the plan adopted in paragraph (c) of this subsection. The council shall:

(a) Be chaired by the executive director of the office of the state board of education, with administrative support provided by the office of the state board of education;

1 (b) Consist of nine (9) members, with three (3) members appointed by
2 the governor, three (3) members appointed by the speaker of the house of
3 representatives, and three (3) members appointed by the president pro
4 tempore of the senate; and

5 (c) Adopt a model school facility plan and submit it to the legislature
6 by July 1, ~~2026~~ 2027, that:

7 (i) Outlines a clear plan for school facility construction, in-
8 cluding standardization for elementary schools, middle schools,
9 and high schools;

10 (ii) Considers potential variability of school properties, ob-
11 jectives, and goals; and

12 (iii) Consults all necessary experts to develop a thorough plan
13 for school facilities to guide the use of funds from the school
14 modernization facilities fund.

15 SECTION 2. An emergency existing therefor, which emergency is hereby
16 declared to exist, this act shall be in full force and effect on and after its
17 passage and approval.